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HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 77

AN ACT TO AMEND TITLE 14 OF THE DELAWARE CODE RELATING TO TRAINING FOR SCHOOL BOARDS.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Amend § 1049B, Title 14 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows and redesignating accordingly:

§ 1049B. ~~Training program.~~ School board training.

(a)(1) In order to best understand the educational and legal issues involved in special education due process hearings, each school board member must ~~receive~~ complete training at the beginning of that member's term on a school board concerning special education due process hearings.

(2) In order to understand and fulfill the requirements of office, each school board member must complete training on all of the following at the beginning of that member's term on a school board:

a. Requirements for school board meetings under this title and the Freedom of Information Act, Chapter 100 of Title 29.

b. Best practices regarding the conduct of meetings, including the use of rules of order.

c. The State Employees', Officers' and Officials' Code of Conduct, subchapter I. of Chapter 58 of Title 29.

(b)(1) The Department of Education (~~Department~~) ~~through regulations~~ shall establish through regulations, the criteria, material, and method of ~~such the training program.~~ required under paragraph (a)(1) of this section. The delivery of the training may be delegated to or purchased from another entity.

(2)a. The Department must identify trainings on the topics required under paragraph (a)(2) of this section.

b. Each school district is responsible for offering the trainings required under paragraph (a)(2) of this section to school board members. The delivery of the training may be delegated to or purchased from another entity.

(3) The training required under subsection (a) of this section must be offered virtually at least twice a year.

~~Delivery of the training may be delegated outside the Department of Education.~~

(b) (c) The president of a school board shall inform each newly-elected or appointed member of the school board of the obligation to complete training under subsection (a) of this section. By January 15 each year, the president of a school board shall send a letter to any board member who has not completed the training required under subsection (a) of this section by January 1 following the board member's election or appointment.

(d) The training and notices required under this section may be combined with the training and notices required for financial responsibility training under § 1803 of this title.

Section 2. Amend § 519, Title 14 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows and redesignating accordingly:

§ 519. ~~Training program.~~ Charter school board training.

(a)(1) In order to best understand the educational and legal issues involved in special education due process hearings, each member of a charter school board of directors must receive complete training at the beginning of that member's term on a charter school board concerning special education due process hearings.

(2) In order to understand and fulfill the requirements of office, each charter school board member must complete training on all of the following at the beginning of that member's term on a charter school board:

a. Requirements for charter school board meetings under this title and the Freedom of Information Act,

Chapter 100 of Title 29.

b. Best practices regarding the conduct of meetings, including the use of rules of order.

c. The State Employees', Officers' and Officials' Code of Conduct, subchapter I. of Chapter 58 of Title 29.

(b)(1) The Department of Education (Department) ~~through regulations~~ shall establish through regulations, the criteria, material, and method of ~~such the training program.~~ required under paragraph (a)(1) of this section. The delivery of the training may be delegated to or purchased from another entity.

(2)a. The Department must identify trainings on the topics required under paragraph (a)(2) of this section.

b. Each charter school is responsible for offering the trainings required under paragraph (a)(2) of this section to members of the charter school board of directors. The delivery of the training may be delegated to or purchased from another entity.

(3) The training required under subsection (a) of this section must be offered virtually at least twice a year.
~~Delivery of the training may be delegated outside the Department of Education.~~

(b) (c) The president of a charter school board of directors shall inform each newly-elected or appointed member of the board of directors of the obligation to complete training under subsection (a) of this section. By January 15 each year,

53 the president of a charter school board of directors shall send a letter to any board member who has not completed the
54 training required under subsection (a) of this section by January 1 following the board member's election or appointment.
55 (d) The training and notices required under this section may be combined with the training and notices required for
56 financial responsibility training under § 1803 of this title.

SYNOPSIS

This Act requires that members of school boards, including charter school boards, receive training on all of the following:

1. Requirements for school board meetings under this title and the Freedom of Information Act, Chapter 100 of Title 29.
2. Best practices regarding the conduct of meetings, including the use of rules of order.
3. The State Employees', Officers' and Officials' Code of Conduct, subchapter I. of Chapter 58 of Title 29.

Most school boards already provide training that satisfies the requirements under this Act and the training and notices required under this Act may be combined with the training and notices already required under § 1803 of Title 14 for required financial responsibility training.